9. The law laid down by the Hon'ble Supreme Court provides that denial of a fair trial simplicitor vitiates the trial and the question of prejudice does not arise when a citizen is deprived of his life without complying with the procedure prescribed by law. (*Bashira v. State of U.P.*, (*1969*) 1 SCR 32 and *Hussainara Khatoon v. State* 1980 (1) SCC 98.)
10. It is an established position at law that international conventions form part of domestic law which are enforceable in the absence of contrary statue (See *Visakha*) and can be used to interpret the width and breadth of fundamental rights in the Indian Constitution. Article 14 (3) (b) of the ICCPR provides that a person accused of a criminal offence has a right to be defended by an effective counsel during detention, trial and appeal.
11. In my opinion the judgement of this Hon'ble Court dated 4.8.2005 warrants curation since the appointment of amicus by the court of sessions in violation of the procedure prescribed by the Delhi High Court Rules has manifestly prejudiced the case of the accused. The Court erroneously concluded that the Petitioner was adequately represented based on a chart presented by the prosecution showing the number of questions asked in cross examination when a perusal of the questions itself reveals the manifest prejudice as is detailed vide the chart annexed to the curative petition. Moreover, at several places the accused Petitioner has himself been compelled to cross examine witnesses as he obviously perceived himself to be inadequately represented. Cross examination by the accused in a trial which could lead to a death sentence is no substitute for cross examination by a legally trained mind.

New Delhi
Dated

Indira Jaising
Snr. Advocate